Effective Date:
July 1, 2021

Background:
Executive Orders (EOs) N-29-20, N-69-20 and N-75-20 provided relief to families during the COVID-19 pandemic by exempting months of aid from counting towards the CalWORKs 48-month time limit. The exemption was effective from March 4, 2020 through June 30, 2021. Under the EO guidance, exemptions were given to all current CalWORKs customers who had not reached their CalWORKs 48-month time limit and had not exceeded their TANF 60-month time limit. The exemption criteria also applied to customers who reached their TANF 60-month time limit (but not exceeded) if they had not exhausted their CalWORKs 48-month time limit.

Purpose:
The purpose of this material is to provide guidance to implement the provision in Assembly Bill (AB) 128 that extends the COVID-19 Good Cause time limit exemption to aided CalWORKs adults. The time limit exemption is effective July 1, 2021 through the implementation of the 60-month CalWORKs time limit.

Policy:
Under AB 128, effective July 1, 2021, all current CalWORKs customers (aided adults) who have not reached their CalWORKs 48-month time limit are eligible to receive the COVID-19 AB 128 exemption regardless of their TANF time limit. Refer to the illustration below:

CalWORKs Time Clock	TANF Time Clock	Is the customer eligible to receive the COVID-19 AB 128 exemption?
40	42	Yes, the customer is under the CalWORKs 48-month time limit
45	60	Yes, the customer is under the CalWORKs 48-month time limit
48	60	No, the customer already reached the CalWORKs 48-month time limit. Customer is considered CalWORKs timed-out and is no longer eligible to received CalWORKs unless the customer meets a time limit extender. Customers with a time limit extender are **not** eligible for the COVID-19 AB 128 exemption.
40	61	Yes, the customer is under the CalWORKs 48-month time limit

Procedure:
Automation
CalWIN will continue to run the monthly Structured Query Language (SQL) to update cases with *Exemption 407- Lack of Supportive Services* to the 48-Month Time Clocks. As of July 1, 2021, CalWIN updates are functioning as designed and manual corrections to these exemptions do not need to be made. Any cases identified that require manual correction will be issued by Automation or CalWORKs Program for appropriate action.

Time-On-Aid (TOA) Reviews
Human Services Specialist (HSS) must continue to conduct TOA reviews and inform customers of their TOA:

- At intake

- At each annual redetermination
- Upon customer's request
- On the 42nd, between 42nd and 46th and on the 48th month of aid and
- After reaching the 48th month, if their children remain on aid and child support or overpayment recoupment reimburses month(s) of aid.

If the customer's time clock is inaccurate, HSS are required to correct the clock(s) and apply the exemption if applicable.

Program Impact/s:
Forms and Document Capture
The *Time on Aid Verification for CalWORKs/TANF 48-Month Time Limits* (CW 2191) form is available in the Eligibility Forms Library (EFL). The CW 2191 may be used as a job aid to complete the TOA reviews.

References:
ACWDL dated: March 27, 2020, June 16, 2020 and August 31, 2020
ACL 21-82

Sunset Date:
This policy will be reviewed for continuance by July 30, 2023.

Approval for Release:



Rick Wanne, Director
Self Sufficiency Services